

FEDERAL MARITIME COMMISSION

NIELSEN & BAINBRIDGE, LLC,

Complainant,

v.

EVERGREEN LINE JOINT SERVICE
AGREEMENT (FMC#01 1982), EVERGREEN
MARINE CORPORATION (TAIWAN) LTD.,
EVERGREEN MARINE (UK) LIMITED,
ITALIA MARITTIMA SPA, EVERGREEN
MARINE (HONG KONG) LTD., EVERGREEN
MARINE (SINGAPORE) PTE. LTD., and
YANG MING MARINE TRANSPORT
CORPORATION,

Respondents.

Docket No. 25-02

OPPOSITION TO MOTION

Respondents, EVERGREEN LINE JOINT SERVICE AGREEMENT (FMC#01 1982), EVERGREEN MARINE CORPORATION (TAIWAN) LTD., EVERGREEN MARINE (UK) LIMITED, ITALIA MARITTIMA SPA, EVERGREEN MARINE (HONG KONG) LTD., EVERGREEN MARINE (SINGAPORE) PTE. LTD., and YANG MING MARINE TRANSPORT CORPORATION, by their attorneys Mahoney & Keane, LLP and as directed by the August 28, 2026 Order Setting Status Conference, respond to the Fourth Motion to Extend Deadlines filed by Complainant, NIELSEN & BAINBRIDGE, LLC (“NBG”), on August 26, 2026. Inasmuch as Respondents have been directed to respond so expeditiously, we would also welcome the opportunity for further briefing, to the extent the Commission may be inclined to further entertain NBG’s application.

First, NBG's motion rests on the failure of three former NBG employees to appear for deposition, after "[t]he Parties accordingly sought and served subpoenas on each of the three." This is not entirely correct. "The parties" did not obtain the subpoenas. Respondents did. On July 16, 2026, the undersigned requested them, and on July 17, 2026 they were issued. NBG never requested subpoenas for the three witnesses at issue, all of whom have, as admitted in NBG's motion papers, been working closely and cooperatively with NBG and its counsel and wrongly failed to appear. Indeed, Complainant's law firm accepted service of the subpoenas, save for one which was unable to be served because the last known address provided by Complainant's counsel was, in fact, no longer valid. In any case, NBG did not cause the subpoenas to be issued and thus has no standing to claim any interest in seeking more time to depose them. See, generally, California v. Meta Platforms Inc., No. 23 Civ. 05448, 2026 WL 2368748, *1 (N.D. Cal. Aug. 16, 2026) ("Meta has no standing to enforce a subpoena issued by an attorney general.")

Second, upon information and belief, the real reason for the motion is that Respondents have legitimately taken the position that, the witnesses having (despite months of planning and attempts at coordination) unjustifiably declined to honor the subpoenas and avoided examination under oath by Respondent, NBG should now be precluded from offering their testimony by way of written statements. See, generally, Perdue Farms, Inc. v. National Labor Relations Bd., 144 F.3d 830, 835 (D.C. Cir. 1998) ("The preclusion rule,' we have said, 'prevents the party frustrating discovery from introducing evidence in support of his position on the factual issue respecting which discovery was sought' . . . A party refusing to comply with a subpoena risks application of the preclusion rule: 'Without an adequate evidentiary sanction, a party served with a discovery order in the course of an administrative adjudicatory proceeding has no incentive to comply, and oftentimes has every incentive to refuse to comply.'") (quoting Atlantic Richfield Co. v. U.S. Dep't of Energy, 769 F.2d 771, 794-95 (D.C.Cir.1984)); Weiss v. La Suisse Societe D'Assurances sur la Vie, 293 F. Supp. 2d 397, 411 (S.D.N.Y.

20003) (“Judge Fox informed the parties that if Plaintiffs failed to move to quash the subpoena and Rosenberg was ‘validly served, then the subpoena has effected [sic] the case and [Rosenberg] is not going to be permitted, nor would I permit any witness within my authority to be called by a party when that witness has refused to provide discovery.’ I agree.”) (citations omitted). Surely NBG cannot exploit their former employee witnesses’ disobedience of FMC process so as to “have it both ways” and present their testimony self-servingly through written submissions prepared with the assistance of NBG’s counsel, while avoiding cross-examination.

Third, ample time has already been provided, and the motion is just too late. Nor were the Respondents advised prior to seeing the subject motion in draft on August 26, 2026 that the witnesses had become recalcitrant. Instead, reports of ongoing efforts to obtain firm dates for the witnesses’ deposition were all that was advised. No extension is warranted under such circumstances. See, generally, TPG Pressure, Inc., v. Omni Logistics LLC & Epic Freight Solutions LLC, Docket No. 22-31, 2023 WL 6975011, *1 (FMC Oct. 18, 2023) (“Counsel for Complainant did not file the motion until the day that expert reports were due and does not provide any reason why the extension was not requested prior to that deadline . . . [F]ailure to timely commence working with an expert is the fault of Complainant and its counsel and will not justify an extension delaying this proceeding . . . Failure to meet deadlines may result in adverse consequences including the inability to present evidence.”); Ysn Imports Inc. D/b/a/ Flame King, v. Feige “Peggy” Oberlander, U Shippers Group Inc., U Shippers Group Mgmt. Co., Docket. No. 21-02, 2022 WL 247912, at *3 (FMC Jan. 21, 2022) (“Complainant has not justified its request for an extension of the deadlines . . . If subpoenaed documents were needed, the subpoenas should have been requested earlier . . . If additional time was needed, the request for an extension should not have been filed the day before the deadline to provide expert reports. The requested extension is denied as it would unduly delay this proceeding, which has been pending for over ten months.”). After

months of fair warning about the Presiding Officer's expectations concerning the completion of discovery, NBG filed its motion on the very day fact discovery closed (after multiple prior extensions). This is plainly contrary to the ALJ's repeated admonitions, as well as FMC precedent.

Fourth, no material prejudice would inure to either party were the motion to be denied and the testimony of these witnesses to be barred, because their conduct in this matter is readily apparent from the abundant e-mail and other correspondence and documents which have already been produced.

However, Respondents would be seriously prejudiced were the motion to be granted. Respondents having already produced eleven witnesses (three more notices having been withdrawn, even though Respondents were prepared proceed after agreeing to firm dates), and counsel having traveled to Taipei, Taiwan and Dallas, Texas to attend same, Complainant now seeks to present is witnesses in question with the benefit of having previously deposed Respondents. That is itself a distortion of the normal order of evidence and further handicaps Respondents, as going forward with depositions after the close of discovery can only be said to be a slap-dash remedy for the flouting of the subpoenas and in total disregard of the established schedule and other demands of the Respondents and their counsel.

Moreover, as to Mr. Albert Josiah, when subpoenaed over a month ago, he advised Complainant's counsel that August 18, 2026 was the best day for his deposition. That request was honored although it meant arranging overseas and Texas depositions around it. A deposition was set for that date, accordingly, but eventually busted, as Mr. Joshia never appeared. We were subsequently advised he thought it had been cancelled, a dubious claim since he was prepared for the deposition the day before to our knowledge and in any event did not answer phone calls or text messages from Complainant's counsel. Not only did that cause legal costs for the Respondents but a court reporter fee of \$500.00 was incurred for the "broken" deposition. We were then advised he was available for dates the following week which had already been blocked out for four witnesses in Dallas, which required travel for counsel. Then we were advised the week of

September 7, 2026 (Labor Day week) was available, but, again, that week was already the subject of other deposition commitments. We were also advised he would be leaving the country for several months on the weekend of September 14, 2026. Given his travel plans, the failure to appear for a deposition over the course of a month only underscores the cavalier manner in which he treated the issue. And the other witnesses did not even bother to engage in discussions with the undersigned to facilitate compliance with their subpoenas. They just flouted them. The effort to now jam Josiah's and the others' depositions into dates long ago scheduled for other depositions would create obvious hardships for Respondents and is simply wrong.

Finally, we note other FMC matters have schedules that will be upset should the present motion be granted, further pressurizing this matter and prejudicing the Respondents, all driven by only one factor, the subpoenaed former employee witnesses all chose without explanation or justification to unilaterally disobey the Commission's legal process. The Respondents should not bear the brunt of that improper behavior.

And fifth, NBG's proposed amended schedule would provide too little time for Respondents to prepare the brief, appendix, and other responsive documents, especially given that the period would cover the Christmas and New Year holidays. While NBG has had years, literally, to prepare its case, Respondents are constrained to await those submissions before going into the record documents and testimony to properly address each allegation. Respondents would also note that the claims against Evergreen and Yang Ming are separate and distinct. We are really dealing with two cases in one combined proceeding. More time should be afforded to prepare the defense, accordingly. Indeed, the parties have already exchanged some million and a half documents, and many more pages, and taken nine depositions. Expert depositions are still expected to go forward. This is a monumental undertaking by any measure and warrants more than a mere month's time. Respondents thus urge the Commission to grant the one and only extension which

should be issued and provide that additional time to Respondents. But Complainant's instant request is plainly without merit on any one of the above-referenced grounds.

WHEREFORE, Respondents pray that the Motion be denied and that Respondents be awarded additional time to prepare its brief and appendix, as well as such other and further relief as may be deemed just and proper.

Dated: New York, New York
August 31, 2026

Respectfully submitted,

MAHONEY & KEANE, LLP
Attorneys for Respondents
EVERGREEN LINE JOINT SERVICE AGREEMENT
(FMC#01 1982), EVERGREEN MARINE
CORPORATION (TAIWAN) LTD., EVERGREEN
MARINE (UK) LIMITED, ITALIA MARITTIMA SPA,
EVERGREEN MARINE (HONG KONG) LTD.,
EVERGREEN MARINE (SINGAPORE) PTE. LTD., and
YANG MING MARINE TRANSPORT CORPORATION

By: s/ Edward A. Keane
Edward A. Keane
Garth S. Wolfsom
40 Worth Street, Suite 602
New York, New York 10013
(212) 385-1422
E-Mail: ekeane@mahoneykeane.com
E-Mail: gwolfson@mahoneykeane.com
File No.: 12/4559